

Ch 3 POLICY / COMPETITION POLICY & INDUSTRIAL POLICY



European Business & Economics

Ch 1 : Context

*European Idea
Institutional & Substantive Law
Single Market, EU Trade & Global Europe*

← = Contexts

Ch 2 : Functioning

*Macroeconomic Governance under EMU
Monetary Policy
Fiscal Policy
Story of EMU*

← = Consequences

Ch 3 : Policy

Structural Policies / CAP

→ **From Competition to Industrial Policy**

Budget of EMU

Ch 4 : Businesses

European Business & Economics

EU Competition Policy

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from : https://european-union.europa.eu/priorities-and-actions/actions-topic/competition_en

...What is Competition Policy ?

Competition Policy legislation for a better Internal Market
Against competition distortions & Provide better protection for consumers

No advantages as preferential treatment
(non-repayable subsidies, loans on favourable terms, tax and duty exemptions...)
Ban on anti-competitive agreements (= full market opening)
Prohibition of abuse of a dominant position

Merger control & antitrust rules...but...
Some Public services as general economic interest (SGEIs)
(e.g. electricity, post and rail transport vs EU liberalization)
Prohibition of State Aid ...but...
State aid Temporary Framework Measures (COVID-19, Energy, Farming...)..so what...

Market distortion banned by EU

Illegal contacts and agreements

These agreements are known as **cartels**. They are forbidden because they restrict competition. They can take many forms, and need not be officially approved by the companies involved. The most common examples of these practices are:

- **Price fixing**
- **Market sharing**
- Agreement on **customer allocation**
- Agreement on **production limitation**
- **Distribution agreements** between suppliers and re-sellers where, for example, the price charged to customers is imposed by the supplier

All agreements and exchanges of information between you and your competitors that reduce your strategic uncertainty in the market (around your production costs, turnover, capacity, marketing plans, etc.) can be seen as anti-competitive.



Even **disclosing** this kind of strategic information **unilaterally** via mail, phone or meetings **could be seen as infringing this rule**.

Abuse of dominant position banned

Abuse of a dominant position

If your company has a large market share, it holds a dominant position and must take particular care not to:

- charge **unreasonably high prices** which would exploit customers
- charge **unrealistically low prices** which may drive competitors out of the market
- **discriminate** between customers
- force certain **trading conditions** on your business partners

Competition Policy is an exclusive competence

In certain areas, the EU alone is able to pass laws. The role of member countries is limited to applying the law. In these areas, the EU has what the treaties call exclusive competences:

1. customs union
2. competition rules for the single market
3. monetary policy for the eurozone countries
4. trade and international agreements (under certain circumstances)
5. marine plants and animals regulated by the common fisheries policy



See more [EU Trade](#) (Fr) [EU Trade](#) (ENG)...exclusive competence of the Union !

Paradox of EU Competition Policy...

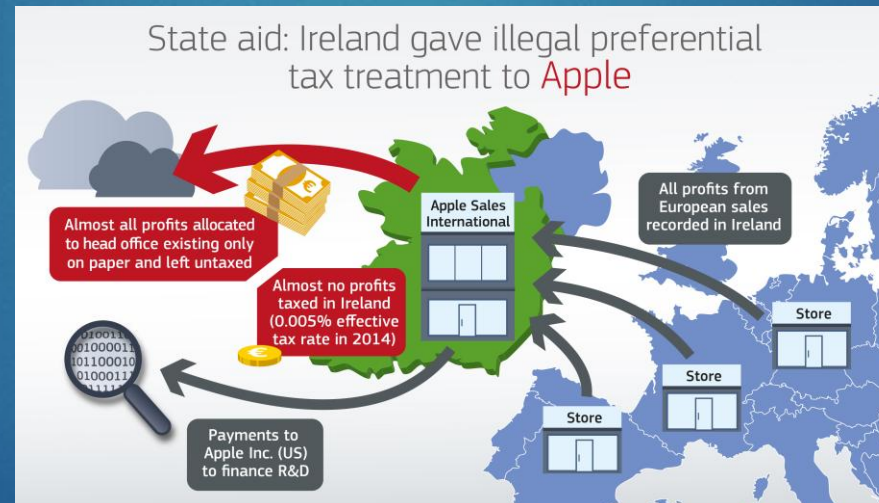
- RYANAIR Case (2004) :
The EU Commission Ryanair received state aids at the regional airport of Charleroi
- MICROSOFT Case (2014) :
The EU Commission found that Microsoft had abused its dominant position in PC operating systems by withholding critical interoperability information from its competitors
- APPLE Case (2016) :
The EU Commission instructed Ireland to seek payment of EUR 13 billion in taxes from Apple.
- SIEMENS/ALSTOM Case (2019)
The EU Commission prohibited tie-up Siemens/Alstom, European rail champions: what now for EU merger control after Siemens/Alstom?



More Liberalization or Regulation...

APPLE & Ireland (2016)

State Aid Case Study



(from : https://en.wikipedia.org/wiki/Apple%27s_EU_tax_disp)

More Liberalization or Regulation...

SPOTIFY vs APPLE (2019 / 2024)

Dominant Position Case Study



March 04, 2024

1.8 Billion EUR Antitrust Fine !!!!



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See « Gatekeepers » Controversy...and DMA (March 7, 2024)...

More Liberalization or Regulation...

USB-C vs APPLE (2024)

Dominant Position Case Study

Dec 2024



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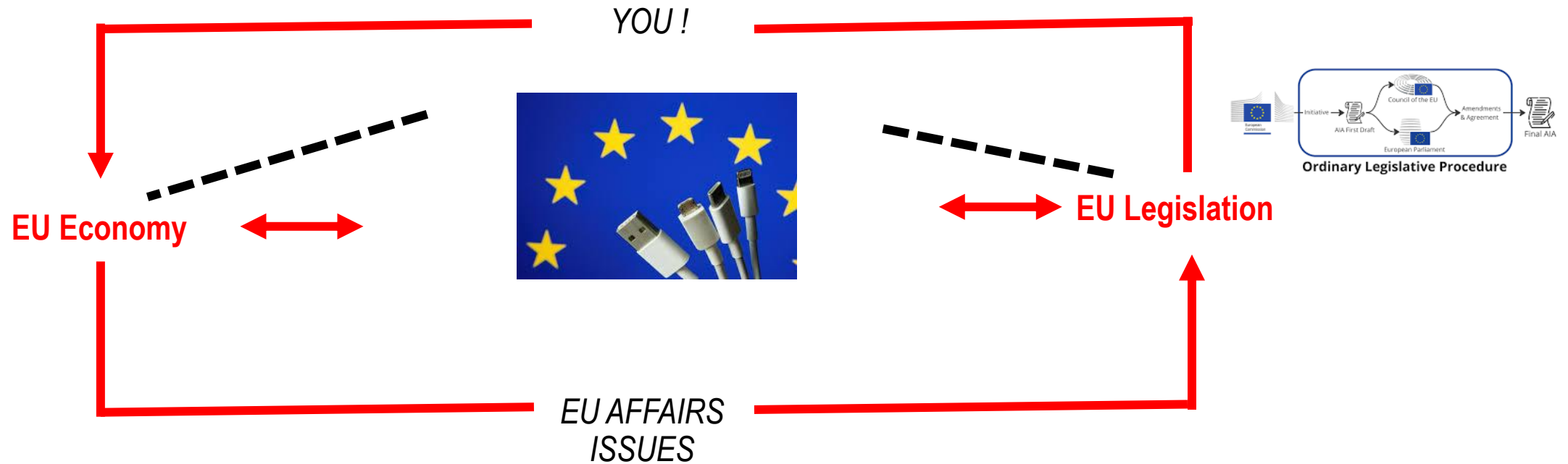
More Liberalization or Regulation...

USB-C vs APPLE (2024)

Dominant Position Case Study

Directive (EU) 2022/2380 of the European Parliament and of the Council of 23 November 2022 amending Directive 2014/53/EU on the harmonisation of the laws of the Member States relating to the making available on the market of radio equipment (full original Text see [EUR-Lex](#))

...how does the EU actually work...



European Business & Economics

Commerzbank/Unicredit (March 14, 2025 / March 16, 2026)

Consolidation Case Study

towards a full Takeover ?



UniCredit's Commerzbank stake
acquisition fuels European
banking consolidation rumours

March 16, 2026

From : BCE: feu vert à la montée d'UniCredit au capital de Commerzbank | Allnews

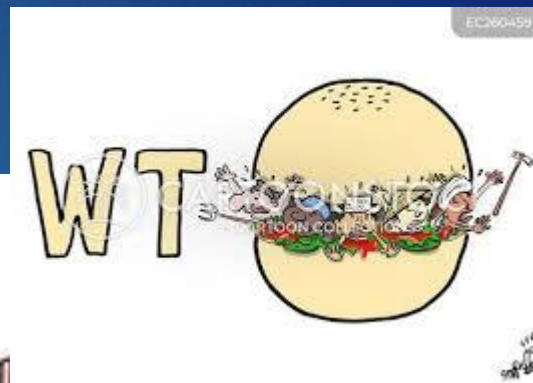
...and in the end...

EU merger control rules...but need to have a European Champion...
compensation for harm caused to individuals or other businesses by an infringement of competition law.
Tax Ruling in some Member States vs State Aid
Subsidies or other to attract companies in local Airport

European competition law vs. European industrial policy ?



**Competititon Policy big shift : From focus on Consumers
to revitalisation of Corporations**



Where is the WTO ...?

European Business & Economics

EU Industrial Policy is...



EU Leaders' Retreat
February 12, 2026



EU Council
March 19, 2026



One Europe, One Market
February 12, 2026

...changing the very structure...

Why do we need a renewed EU industrial strategy?

Industry is the backbone of Europe's economy



From : Building a Strong & Modern EU Industry, BusinessEurope, 2017

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BusinessEurope

Industrial Policy

General principles of EU industrial policy

The EU's industrial policy aims to make European industry more competitive, so that it can maintain its role as a driver of sustainable growth and employment in Europe. The digital transition and the transition towards a carbon-neutral economy have led to the adoption of various strategies to ensure better framework conditions for EU industry. The impact of the COVID-19 pandemic and the war in Ukraine have sparked new reflections on economic recovery, reconstruction and building resilience.

New Industrial Policy

The industrial strategy for Europe focuses on three areas:

- dealing with the **EU's strategic dependencies**
- strengthening the **resilience** of the single market
- accelerating the **green and digital transitions**

Additional initiatives were proposed under the **Green Deal industrial plan** to speed up the **net-zero transformation of industry** and set Europe on the path towards **climate neutrality**.

Furthermore, under the competitiveness compass, the Commission proposed a **clean industrial deal** and an **industrial accelerator act**, to help manufacturers switch to clean production and technologies, boost manufacturing and enhance EU growth and competitiveness.

Timeline

- 
- A vertical timeline with three entries. Each entry consists of a date on the left, a blue dot on a vertical line, and a description on the right. The dates are 20/03/2026, 04/03/2026, and 27/02/2026. The descriptions are: 'EU leaders launch a 'One Europe, One Market' agenda', 'Council adopts its negotiating position on the amended critical raw material act', and 'Council adopts position to make steel and coal industries cleaner and more competitive'.
- 20/03/2026 • EU leaders launch a 'One Europe, One Market' agenda
 - 04/03/2026 • Council adopts its negotiating position on the amended critical raw material act
 - 27/02/2026 • Council adopts position to make steel and coal industries cleaner and more competitive

→ [See full timeline](#)

Resilience in raw materials

Critical raw materials

The **critical raw materials act**, adopted in March 2024, aims to:

- increase and diversify the EU's critical raw materials supply
- improve **circularity**, including recycling
- support **research and innovation** on resource efficiency and the development of substitutes

The EU set the following **objectives for 2030** as regards the EU's annual consumption:

- at least **10%** from EU extraction
- at least **40%** from EU processing
- at least **25%** from domestic recycling

Chips and semiconductors

Chips industry

The EU chips act addresses the key challenges facing the semiconductor industry, with a view to:

- **mitigating shortages**
- enhancing EU's **security of supply** and **reducing dependency** on foreign actors
- creating **good-quality jobs** and business opportunities

The objective is to **double** the EU's global market share in semiconductors by 2030.

Energy and Digital transition

Green and digital transitions

EU industry plays a central role in the **green and digital transitions**.

It contributes to the development of new technologies, products, services, markets and business models. It also shapes new types of jobs that will require new skills.

Green technologies

Net-zero technology products

Thanks to the **net-zero industry act**, the EU will **scale up the manufacturing of clean technologies** in the EU.

These new rules will facilitate the **conditions for investments in green technologies**.

The objective is **to cover 40% of the EU's needs** with net-zero strategic technology products, such as solar photovoltaic panels, wind turbines, batteries and heat pumps.

The act will accelerate progress towards the EU climate and energy targets, while boosting the **competitiveness** of EU industry, creating quality jobs and supporting the EU's efforts to become **energy independent**.

The 3 pillars of EU industrial policy

1. Strategic Autonomy

- ▶ Reducing dependence on third countries for critical materials, chips, energy, and key technologies.
- ▶ Industrial alliances & diversification of supply chains.
- ▶ Example: EU Chips Act → doubling EU semiconductor market share by 2030.

2. Resilience of the Single Market

- ▶ Lessons from COVID-19 disruptions.
- ▶ Monitoring strategic dependencies.
- ▶ Strengthening internal production capacity and cross-border cooperation.

3. Green & Digital Transitions

- ▶ Clean tech manufacturing as a competitiveness driver.
- ▶ Key net-zero technologies supported by the carbon regulation

How...?



EU Industrial Policy

secure framework conditions favourable to industrial competitiveness

EU firms are **too small** to compete successfully

Good for Entrepreneurs and businesses : **Big** EU Champions in Industry

Numerous EU action plans reflecting economic & social transformations over the years
(Lisbon Strategy, European Industrial Strategy, Clean Industrial Deal, ...)

From « Competition Policy » to Competitiveness

(Draghi Report, Competitiveness Compass, New Industrial Deal, Rearm Europe, ...)

« Made in Europe » even a *Buy European Act* would be necessary (Industrial Sovereignty)

Right Balance between industrial & competition policy

Strategic Autonomy : reinforcing competitiveness in Key Sectors

EU Industrial Policy (Sept 9, 2024)

*“Europe has everything it needs to succeed in the race to the top. But, at the same time, we must fix our weaknesses to regain competitiveness. The **Competitiveness Compass transforms the excellent recommendations of the Draghi report into a roadmap**. So now we have a plan. We have the political will. What matters is speed and unity. The world is not waiting for us. All Member States agree on this. So, let's turn this consensus into action.”*

(President of the European Commission, Ursula von der Leyen, Jan 29, 2025)



EU Industrial Policy



(from : https://ec.europa.eu/commission/presscorner/detail/en/fs_25_338 , Jan 29, 2025)

Industrial Policy & EU Competitiveness

EU Deindustrialization

More Innovation, R & D, Technological Choices

Strategic industries Onshoring / Friendshoring

US / ASIA / EU, see Chapter Global Europe

Global Supply Chain

China New Silk Road (2013)

US Inflation Reduction Act (2022)

EU Net-Zero Industry Act (2023)

Key sectors of EU Industrial Policy

1. Batteries
2. Hydrogen / Electrolysers
3. Wind Energy
4. Solar PV
5. Semiconductors
6. Carbon Capture & Storage



Wokshop EU Industrial Policy

Holcim case (Cement industry)

Read the following articles:

[20240516_press_holcim_go4zero_en.pdf](#)

[Holcim breaks ground of state-of-the-art GO4ZERO plant in Belgium for net-zero cement](#)

Identify :

- How does the EU support this industrial project and
- Where this project matches with the priorities of the EU industrial policy



Reindustrializing Europe...a long Story...

AIRBUS (1969)

4-State intergovernmental construction



With the « EU » or without...

Click on CTRL Picture
for Official WEBLINK
AIRBUS

Reindustrializing Europe...a long Story...

ARIANE 6 vs SPACE X (2025)

Industrial Competition



C'est Dans l'Air, March 08, 2025

Reindustrializing Europe...a long Story...

...from a war...REARM EUROPE (2025)...



C'est dans l'Air, March 08, 2025

Yes...but...WE are
responsible in a way...



Reindustrializing Europe...a long Story...

...to another war...MADE IN EUROPE (2026)



Yes...but...WE are responsible in a way...



Reindustrializing Europe...a long Debate...

EU Industrial Policy = a Choice = our Jobs !!



Economy vs Ecology...?



Reindustrializing Europe...a long Debate...

EU Industrial Policy = Choices = Your Jobs !!



« **Made in Europe** »

March 04, 2026



"Notre objectif est clair : ramener l'industrie à 20% du PIB européen d'ici 2035, contre 14% aujourd'hui." Stéphane Séjourné, lors d'une conférence de presse à Bruxelles



Cela va passer par l'instauration d'une "préférence européenne", une mesure longtemps restée taboue en Europe en raison de son caractère protectionniste. Dans la pratique, il s'agit d'exiger des entreprises de secteurs jugés stratégiques "un nombre ou un pourcentage de composants critiques originaires d'Europe"

EU Industrial Policy (March 4, 2026)

The **Industrial Accelerator Act (IAA)** is a legislative proposal designed to strengthen Europe's industrial base by boosting manufacturing, growing businesses, and creating jobs in the EU. It delivers on the recommendations of the Draghi report on EU competitiveness, the political guidelines of the Commission, and the mission entrusted to the Executive Vice-President for Prosperity and Industrial Strategy.



Workshop : Industrial Policy

Case Study : “Europe’s Reindustrialisation Race”

Team up in groups and choose a strategic sector:

1. Batteries
2. Hydrogen / Electrolysers
3. Wind Energy
4. Solar PV
5. Semiconductors
6. Carbon Capture & Storage (optional)

Task

Each group must:

- Identify the EU’s vulnerabilities in their sector
- What are the EU industrial measures to strengthen their sector.
- Evaluate economic impact of EU support
- Prepare a 5-minute pitch.

IAA (March 2026) pushes for Reindustrializing of Europe in some strategic businesses

Industrial Accelerator Act: A New Framework for EU (Sustainable) Industrial Growth | Insights | Sidley Austin LLP

- ▶ Energy intensive products : Chemicals, Plastics, Metals,...
- ▶ Carbon Intensive : Steel, Cement , Aluminium
- ▶ Net zero technologies : Solar Panels, Windmills, Batteries, Nuclear...
- ▶ Automotive : Electrical Vehicles
- ▶ Critical Raw Materials

IAA Purposes

- ▶ Stimulating « EU made origin » in Public Procurement without making a breach with our Trade agreements
- ▶ Restriction of foreign Investments in strategic sectors
- ▶ Promoting Low carbon products

Green Deal

(Mar. 12, 2025)

[The European Green Deal - European Commission](#)

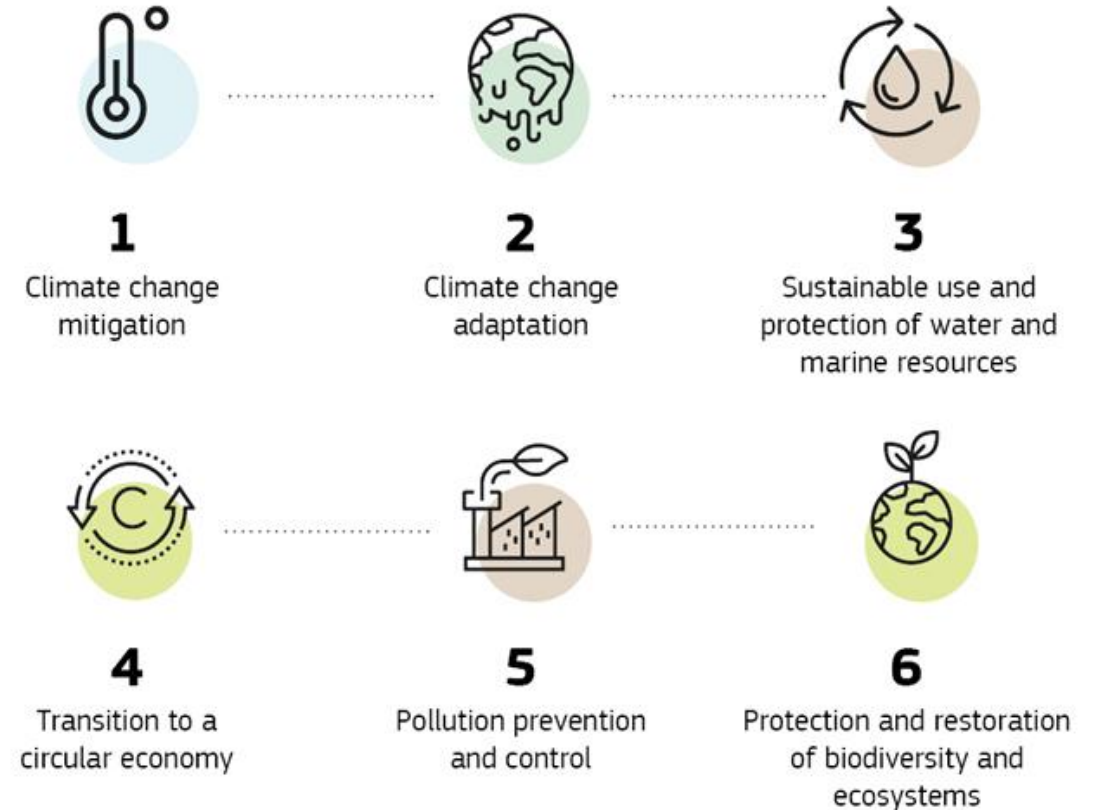


The European Green Deal is the EU's growth strategy. Launched in 2019, it consists of a package of policy initiatives, which set the EU on the path to a **green transition**, with the ultimate goal of reaching **climate neutrality by 2050**.

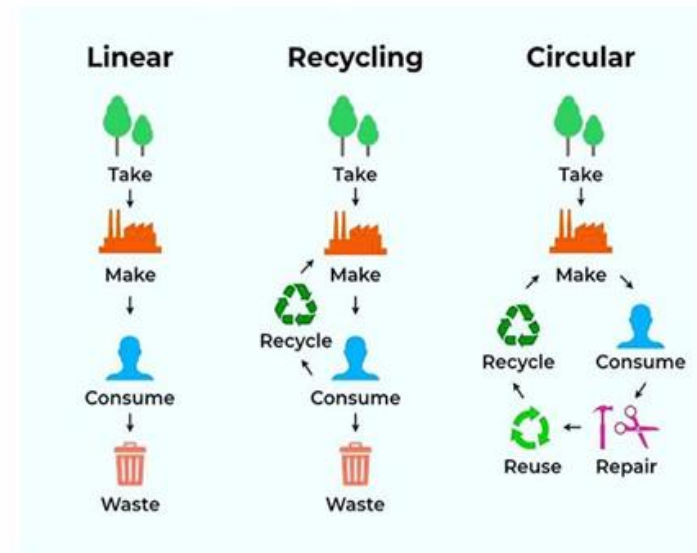
It is the EU's contribution to the Paris Agreement, which the EU and all its countries ratified and which set the goal of keeping global warming to maximum +1.5°C compared to pre-industrial levels.

The Green Deal supports the transformation of the EU into a fair and prosperous society with a modern and competitive economy.

A (new) EU Business Model & Economics



Circular Economy in the EU.. this is no greenwashing !



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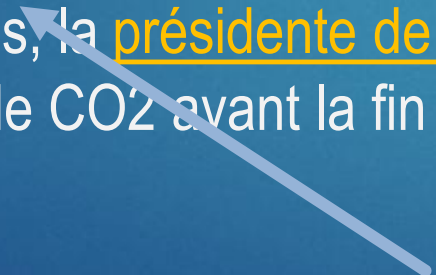
From : <https://www.cremajoe.com.au/blogs/news/reuse-vs-recycle>

Green Deal in evolution : Rolling back some measures perceived as a threat by the EU industry : EV and the automotive industry

Tous les constructeurs doivent respecter une moyenne annuelle d'émissions par voiture vendue en Europe. Cette norme dite CAFE (Corporate Average Fuel Economy) les oblige à vendre progressivement des véhicules de moins en moins polluants, avec en ligne de mire la fin des véhicules thermiques en 2035.

La norme a été globalement respectée jusqu'ici mais les constructeurs peinent à atteindre le palier imposé pour 2025.

Pour leur donner plus de temps, la présidente de l'exécutif européen a promis un amendement au règlement sur les normes de CO2 avant la fin du mois pour étaler les obligations sur trois ans.



= the Debate ...

Green Deal in evolution : Rolling back some measures perceived as a threat by the EU industry : the Omnibus package (with regard to the Sustainability report: CSRD and CSDD)

*Following a month of trilogue negotiations, the European Parliament approved the compromise text amending the CSRD and the CSDDD in December 2025. **On 24 February 2026, the Council also gave its final green light.** The Omnibus I Directive has been published in the EU Official Journal on 26 February 2026. Member States have to transpose this directive into national law by 19 March 2027, with the exception of the provisions concerning the CSDDD, which have to be transposed by 26 July 2028 only (See **EUR-Lex**)*

Green Deal & EU Law Evolution

(Feb 26, 2025)

Le MEDEF se réjouit de la directive « [Omnibus](#) » et prône un assouplissement encore plus important

The upcoming **Omnibus proposal** will simplify sustainability reporting, due diligence, and taxonomy.

OMNIBUS

The Omnibus initiative is a European Commission legislative package aimed at simplifying and harmonizing sustainability reporting and corporate due diligence obligations for large companies.

The **Omnibus legislation**, announced by the European Commission in February 2025, is designed to **simplify and streamline EU regulations** related to corporate sustainability and the Green Deal, reducing administrative burdens while maintaining environmental and social objectives for businesses. It modifies multiple existing EU legal acts simultaneously, including the **Corporate Sustainability Reporting Directive (CSRD)**, the **Corporate Sustainability Due Diligence Directive (CSDDD/CS3D)**, and the **EU Taxonomy Regulation**, to ensure coherence and efficiency in reporting requirements. [↪ Sami.eco](#) +2

OMNIBUS KEY CHANGES

Omnibus package - European Commission

Key Changes

- **CS3D/Corporate Due Diligence:** The Omnibus I directive, effective 18 March 2026, establishes a structured EU-wide framework for corporate due diligence, applying to companies with more than 5,000 employees and global revenues exceeding €1.5 billion. It also extends obligations to certain non-European companies operating in the EU. [↪ 1](#)
- **CSRD/Corporate Sustainability Reporting:** Reporting requirements are simplified to reduce duplication and clarify obligations for ESG disclosures. [↪ 1](#)
- **Taxonomy Regulation:** Adjustments aim to make sustainability classification and reporting more practical for companies, facilitating investment in environmentally sustainable activities. [↪ 1](#)

First Reporting according to OMNIBUS, February 26

Financial Year
2024

Large public-interest entities

- Listed companies
- Reporting under NFRD
- With > 500 employees

CSRD:

No change

Financial Year
2027 2025

Large EU Undertakings

- Listed & unlisted companies
- Meeting at least 2 criteria:
 - 250+ **1000+** employees
 - €25M+ total assets
 - €50M+ net revenue

CSDDD

- CSDDD also to start for FY 2027
- One report every five years

Financial Year
2026

Small and medium-sized EU enterprises (SME)

- Listed SME
- Meeting at least 2 criteria:
 - 10-250 employees
 - €450K-€25M assets
 - €900K-€50M revenue

Voluntary only: "light" templates will be provided by EFRAG

Financial Year
2028

Third-country undertakings (Non-EU companies):

- €150M+ net revenue in the EU
- Meeting at least 1 criteria:
 - EU Branch with €40M+ net revenue
 - And/or EU subsidiary

No change

Look at what can be a ESG report (CSRD)

Overview - CSRD report example

CSRD imposes companies to disclose how their business is compatible with sustainable economy (carbon footprint monitored)

CD3D (not yet in force) will impose companies to make due diligence on social and environmental aspects of all their supply chain (suppliers)

[Home](#) > [Press](#) > [Press releases](#)

● Council of the EU | Press release | 24 February 2026 10:40

Council signs off simplification of sustainability reporting and due diligence requirements to boost EU competitiveness

With a view to boosting EU competitiveness, the Council gave today its final green light to a simplification of the **sustainability reporting and due diligence requirements** for companies. This legislation simplifies the directives on corporate sustainability reporting (**CSRD**) and corporate sustainability due diligence (**CS3D**) by reducing the reporting burden and limiting the trickle-down effect of obligations on smaller companies.